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Case Number: 26STCV01633 Hearing Date: September 23, 2026 Dept: 307

18 TENTATIVE RULING 9:15 a.m., Wednesday, Sept. 23, 2026

YOUNG-JIK

LEE v. DAVID KO, et al. [26STCV01633]

CROSS-DEFENDANTS

YOUNG-JIK LEE AND YJ LEE, M.D. CORP.'S DEMURRER TO THE FIRST AMENDED

CROSS-COMPLAINT OF CROSS-COMPLAINANT DAVID KO

MEET AND

CONFER: OK Counsel

met and conferred by video conference in compliance with Code Civ. Proc. §

430.41 (Clements Decl., ¶ 2.)

BACKGROUND:

Business dispute between co-owners of a Medicare nursing home program/facility, both pleadings allege contract breaches, fiduciary duty breaches, fraud, unfair business practices, etc.

TIMELINE[1]:

4/12/2012: Defendant/Cross-Complainant David Ko

("Ko") forms Defendant Eden Hospice Care, Inc. ("Eden"), which in turn operates a hospice care facility. The facility becomes Medicare Hospice Certified on 7/29/2014. Ko is the sole owner of Eden, which he manages with his wife, Defendant Audrey Ko ("Audrey").

Circa 2014: Plaintiff/Cross-Defendant Dr. Young-Jik

Lee ("Lee") is a physician specializing in geriatric care. Ko meets Lee after one of Lee's patients transfers to Eden for care. Lee tells Ko that Eden would not survive without Lee's endorsement and patients. Lee pressures Ko to pay Lee \$3,000 per month to serve as Eden's medical director.

12/31/2014: Lee signs an agreement to serve as Eden's medical director, effective 1/1/2015. Shortly thereafter, Lee pressures Eden to hire Lee's business partner, Dr. Dong Hyun Lee. Eden enters a contract with Dr. Dong Hyun Lee and pays him \$1,500 per month. Over time, Lee delegates virtually all of his medical director duties to Dr. Dong Hyun Lee. At some point, Ko attempts to reduce Lee's salary at Eden based on Lee's failure to seek patients, the delegation of his work, and the decline in patient referrals, but Lee refuses based on his "reputational value" to Eden.

2019: Ko discovers the Medicare Program of All-Inclusive Care for the Elderly

("PACE"), a government-sponsored program that provides comprehensive health care services to the elderly from their homes to avoid admitting them to nursing homes. Ko repeatedly pitches Lee the idea of co-owning a PACE operation, but Lee shows no interest.

2020: Lee co-owns Cross-Defendant CBL Partners, LLC ("CBL"), which owns a

commercial property at 1818 S. Western Ave. in Los Angeles (the "Property"). Due to the pandemic, CBL loses an anchor tenant at the Property and needs to offset the financial loss. Lee sees an opportunity to put Ko's proposed PACE operation into the Property, even though the Property did not have appropriate upgraded facilities for patients.

9/2020: Lee approaches Ko about opening the PACE operation, subject to signing a long-term lease at the Property. Lee also insists that the funding for the PACE startup would be a 50/50 capital infusion from Ko and Lee, with no outside loans or investors. Ko agrees despite hesitations.

9/14/2020:

Ko and Lee execute an Operating Agreement for nominal

Defendant

1818 Western, LLC (the "Company") and register the Company with the State of California. Under the Operating Agreement, Ko and Lee each hold a 50% membership interest in the Company. The Company agrees to lease the Property from CBL based on Lee's representations that CBL would make all necessary improvements, including installing automatic sprinklers. However, CBL fails to do so.

12/11/2020:

Based on CBL's refusal to make necessary repairs and upgrades

for the

Property, Ko suggests to Lee that the Company should terminate the lease with CBL. Lee rejects the idea.

Mid-2021:

CBL indicates that it may sell the Property and Lee creates a plan to

purchase

the Property from his CBL partners at a "lowball price." Lee asks Ko for the Company to pretend to terminate the lease with CBL so that Lee can make a lower buy-out offer for the Property. Lee assures Ko that there will be no penalty for terminating the lease and that the Company could resume operations at the Property once Lee obtains ownership. Lee also promises Ko that if he purchases the Property, Lee will renovate it. Although Ko is opposed, he consents to Lee's idea and sends CBL a notice that the Company was surrendering the lease for the Property.

8/29/2021:

CBL receives an offer from a third party to purchase the Property.

2022 to 2023:

Lee continues to represent to Ko that CBL could not sell the

Property

without Lee's approval (as a sale required a 70% supermajority among CBL's three partners). Nevertheless, Lee ultimately refuses to outbid the third party

offers and votes for the sale to another buyer, Crystal Beach Management, Inc. ("Crystal Beach").

3/31/2023:

The Grant Deed transferring the Property to Crystal Beach is

recorded.

(RJN, Exh. A.)

6/30/2023:

After the sale, the Company is forced to execute a new lease for

the

Property to avoid jeopardizing PACE compliance. The new lease with Crystal Beach has a significantly higher base rent than the lease with CBL. Crystal Beach also refuses to make improvements to accommodate the Company's PACE application requirements.

2024:

The Company is approved to operate under PACE at the Property.

6/19/2024:

Lee executes an agreement with the Company to serve as its

medical

director, effective 1/1/2025 (the "Medical Director Agreement"). As medical director, Lee agrees to provide health care services to the Company's patients. Lee fails to consistently do so, and the Company loses patients because they could not see a doctor.

12/2024:

Eden terminates Lee as medical director.

9/2025: The

Company hires Sohee Yoon ("Yoon") as a physical therapist. Yoon

also

performs work for Eden's patients, but she refuses to sign a separate employment contract with Eden.

11/19/2025:

Yoon resigns from the Company and asks if her Eden contract was

also voided

(although there was never any such contract). When Lee discovers that a Company employee was treating Eden patients, Lee demands a financial audit of the Company.

11/21/2025:

Lee abruptly resigns as the Company's medical director and from

the

governing board of the Company's PACE program, despite termination notice requirements under the Medical Director Agreement of 120 days without cause and 60 days for a material breach.

11/2025:

Lee contacts the Company's employees, urging them to quit and join

his

other business operations, including Cross-Defendant YJ Lee, M.D. Corp. ("YJL Corp."). At least one contracted nurse practitioner quits the Company and is hired by YJL Corp. Lee also tells the Company's patients to seek treatment at Lee's other clinics, including YJL Corp.

1/16/2026: Lee files the Complaint (which is initially assigned to Hon. James I. Montgomery in Dept. 516), alleging causes of action for:

1. Breach of Contract

2. Breach of Fiduciary Duty

3. Fraudulent Concealment

4. Violation of Corporations Code
section 17704.10

5. Declaratory Relief

6. Derivative Claim for Breach of
Fiduciary Duty

7. Derivative Claim for Conspiracy to
Commit Breach of Fiduciary Duty

8. Derivative Claim for Aiding and
Abetting Breach of Fiduciary Duty

9. Derivative Claim for Fraudulent
Concealment

10.
Derivative
Claim for Conspiracy to Commit Fraud

11.
Derivative
Claim for Aiding and Abetting Fraud

12.
Derivative
Claim for Violation of Penal Code section 496

13.
Derivative
Claim for Violation of Business and Professions Code section 17200

14.
Derivative
Claim for Judicial Expulsion of Member Under Corporations Code section
17706.02, subd. (e)

15.
Direct
and Derivative Claim for Appointment of Receiver Under Code of Civil Procedure
section 564

3/27/2026: Ko files a Cross-Complaint against
Lee, CBL, and YJ Lee, M.D. Corp. The operative First Amended Cross-Complaint ("FAXC"),

filed 5/28/2026, alleges causes of action for:

1. Breach of Contract – Medical Director Agreement
(Derivative)

2. Breach of Contract – Operating
Agreement (Derivative)

3. Breach of Contract – Operating Agreement
(Individual)

4. Breach of Fiduciary Duty
(Derivative)

5. Breach of Fiduciary Duty
(Individual)

6. Negligent Misrepresentation
(Derivative)

7. Negligent Misrepresentation
(Individual)

8. Intentional Misrepresentation
(Derivative)

9. Intentional Misrepresentation
(Individual)

10.
Unfair
Business Practices (Derivative)

11.
Judicial
Expulsion of Member (Derivative)

12.
Tortious
Interference with Contract (Derivative)

13.

Interference

with Prospective Economic Advantage (Derivative)

5/6/2026:

The Court (in Dept. 516) overrules the demurrer filed by Ko, Audrey,

Eden

Hospice, and Defendant Eden Home Care, Inc. to the third and ninth through eleventh causes of action in Lee's Complaint. (See Minute Order, 5/6/2026.)

7/2/2026:

CBL files a Cross-Complaint against Lee, alleging causes of action for

implied

and equitable indemnification, breach of fiduciary duty, and declaratory relief. CBL's Cross-Complaint is voluntarily dismissed on 7/30/2026.

7/17/2026:

CBL files a peremptory challenge to Judge Montgomery, which is

granted

on 7/20/2026. After a series of additional peremptory challenges, the matter is ultimately assigned to Dept. 307 on 8/5/2026.

7/27/2026:

Ko dismisses CBL as a Cross-Defendant in the FAXC.

7/30/2026: Lee and YJL Corp. (collectively,

"Cross-Defendants") files this Demurrer to Ko's FAXC, which is followed by Ko's Opposition (9/10/2026) and Cross-Defendants' Reply (9/16/2026).

TENTATIVE

RULING: CROSS-DEFENDANTS YOUNG-JIK LEE AND YJ LEE, M.D. CORP.'S DEMURRER TO THE FAXC is SUSTAINED without leave to amend in part, SUSTAINED with LEAVE TO AMEND in part, and OVERRULED in part.

I. DEMURRER

Cross Defendants Lee and YJL Corp. demur to the sixth through ninth, twelfth, and thirteenth causes of action in the FAXC pursuant to Code of Civil Procedure section 430.10, subds. (e) and (f).

A.

6th

through 9th Causes of Action: Negligent Misrepresentation and Intentional Misrepresentation [v. Lee] – SUSTAINED without leave to amend in part and with LEAVE TO AMEND in part

Ko fails

to state a misrepresentation claim against Lee. Ko's misrepresentation claims are brought both individually by Ko and derivatively on behalf of the Company. The elements of a claim for fraudulent misrepresentation are: (1) a false representation by the defendant; (2) knowledge of falsity; (3) an intent to deceive or induce reliance; (4) justifiable reliance by the plaintiff; and (5) resulting damages. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974; *Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816.) The elements of a claim for negligent misrepresentation are similar, except unlike a cause of action for fraud, negligent misrepresentation does not require knowledge of falsity. (*Tindell v. Murphy* (2018) 22 Cal. App. 5th 1239, 1252.) "The facts constituting [] fraud, including every element of the cause of action, must be alleged factually and specifically." (*Apollo Cap. Fund, LLC v. Roth Cap. Partners, LLC* (2007) 158 Cal. App. 4th 226, 240.) Like fraud, negligent misrepresentation claims also require pleading with heightened specificity. (*Charnay v. Cobert* (2006) 145 Cal.App.4th 170, 185, fn. 14; *Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519.) "This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 (*Lazar*).)

Here, Ko's

misrepresentation claims against Lee are based on his allegations that Lee made false statements related to the sale of the Property and Lee's related attempts to buy the Property. (FAXC, ¶¶ 123, 134, 144, 156.) Ko alleges that in April 2022, when Ko approached Lee about the opportunity to relocate the Company due to the Property's potential sale, Lee believed that he could use the opportunity to either buy the Property at a below-market price or to increase the value of the Property if the Company terminated its

lease with CBL. (Id. ¶¶ 124, 135, 145, 157.) Lee allegedly told Ko that the Company should surrender its lease, representing to Ko that “CBL could not sell the Property without [Lee’s] approval, that [Lee] would not vote for the sale to any entity but his [own] offer, and that, once sold, the Company could recoup any loss from surrender when [Lee] put in the improvements to the [Property] that the Company needed.” (Id. ¶¶ 125, 136, 146, 158.) Lee also promised Ko that he would put in a “low offer” to buy out his CBL partners and that the strategy would allow Lee to maintain ownership by purchasing the Property at a “knockdown” price. (Id. ¶¶ 56, 57.) Nevertheless, Lee ultimately did not vote against the sale to another buyer, as he promised. (Id. ¶¶ 128, 139, 149, 161.)

The Court

finds that these allegations are not sufficiently specific to overcome the heightened pleading requirement for the first element of misrepresentation. For example, Ko does not allege when Lee made these promises. Rather, he make general references to various communications during a period between 2021 and 2023. (FAXC, ¶¶ 55,

61-64, 123, 134, 144, 156.) Further,

Ko does not allege how or by what means these promises were made. For example, were they stated orally or communicated in writing, and if so, by email, letter, electronic message, contract, or otherwise? To state a viable misrepresentation claim, Ko must allege more specific factual details identifying the nature and circumstances of Lee’s alleged misrepresentations.

Additionally,

Cross-Defendants characterize Lee’s alleged statements as non-actionable “predictions” about the potential future consequences of the Company’s lease surrender, as opposed to actionable misrepresentations of past or then-existing facts. (Mot., at p. 6.) “The law is well established that actionable misrepresentations [whether fraudulent or negligent] must pertain to past or existing material facts.” (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1469 (Cansino).) “Statements or predictions regarding future events are deemed to be mere opinions which are not actionable.” (Ibid.) Here, the alleged representations about future events are threefold: (1) that Lee would put in a below-market offer for the Property, (2) that Lee would not vote for the sale of the Property to a third party buyer, and (3) once sold to Lee, the Company could recoup losses from the lease surrender because Lee would improve the Property. (FAXC, ¶¶ 128, 139, 149, 161.) The Court finds that Lee’s representations that he would be able to purchase the Property for a “lowball” or “knockdown” price and outbid other buyers do constitute predictions about

the future market conditions of the Property, which are not actionable under *Cansino*. (*Cansino*, supra, 224 Cal.App.4th at p. 1470.)

By

contrast, Lee's representations about his voting efforts to interfere with any sale to a third party are not mere "forecasts" about future conditions. Ko plainly alleges that Lee informed Ko that CBL presently "could not approve any sale without a 70% supermajority vote," meaning the Property "could not be sold unless [Lee] approved of any sale." (FAXC, ¶ 58.) When CBL received its first purchase offer from a third party purchaser, Lee "continued to express confidence that the supermajority requirement and his right of first refusal would protect the [Property] from being sold to a third party." (Id.

¶ 61.) Ko further alleges

that "through 2022 and into 2023" Lee "continued to represent to [Ko] that CBL informed the potential buyers about the Company's surrender of its lease, that his vote was necessary for the sale to move forward, that he was voting against any sale and that he would not vote to sell to anyone but his offer." (Id. ¶ 62.) However, Lee ultimately failed to outbid the third party bidders and voted for and agreed to the sale to another buyer. (Id. ¶¶ 65-66.)

Thus, to

the extent that Ko is alleging that Lee misrepresented his then-present intent to personally obtain the Property, his intended and actual use of his voting power for CBL with respect to the sale of the Property, and his ability to prevent any third party sale, such statements would likely be actionable if recharacterized as a false promise claim. (*Lazar*, supra, 12 Cal.4th at p. 638 ["A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud."].) Even so, Ko's intentional misrepresentation claims are not presently framed as false promise claims, which require pleading slightly different elements than intentional misrepresentation, including that the defendant did not intend to perform his promise when he made it. (See *CACI No.*, 1902.) If Ko is able to add more specific factual details regarding the nature and circumstances of Lee's misrepresented intent, Ko can theoretically restate a claim for false promise.

Nevertheless,

Ko's "false promise" theory of fraud cannot, as a matter of law, support a theory of negligent misrepresentation. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 458 ["Although a false promise to perform

in the future can support an intentional misrepresentation claim, it does not support a claim for negligent misrepresentation.”.) “[M]aking a promise with an honest but unreasonable intent to perform is wholly different from making one with no intent to perform and, therefore, does not constitute a false promise. ...[W]e decline to establish a new type of actionable deceit: the negligent false promise.” (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 159.) Because Ko has not demonstrated that he will be able to reframe his negligent misrepresentation claims in a manner that is limited to unreasonable representations about “past or existing material facts,” he cannot state negligent misrepresentation claim as a matter of law. (Id. at p. 158.)

Finally,

Cross-Defendants argue that Ko’s misrepresentation claims are time-barred. The statute of limitations for “an action for relief on the ground of fraud or mistake” is three years. (Code Civ. Proc. § 338, subd. (d).) “The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Ibid.)

In other words, the three-year limitations period begins

to run when the aggrieved party suspects or should suspect that his injury is caused by wrongdoing. (Brandon G. v. Gray (2003)

111 Cal.App.4th 29, 35; Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 803.)

Here, although

Ko does not specifically identify when Lee’s misrepresentations were made, the alleged representations occurred at some point between summer 2021 when CBL began sale discussions and the sale of the Property which occurred at some point before April 1, 2023. (FAXC,

¶¶ 55, 61, 65.) The Court

takes judicial notice of the fact that the Grant Deed transferring the Property from CBL to Crystal Beach was recorded on March 31, 2023. (RJN, Exh. A.) Ko filed his original Cross-Complaint in this action on March 27, 2026. Cross-Defendants assert that the limitations period began to run on or around August 29, 2021 when CBL received its first offer for the Property and Lee “continued to” represent that he could “protect the building from being sold to a third party.” (FAXC, ¶ 61.) However, Ko also alleges that CBL received additional purchase offers in June 2022 and that “through 2022 and into 2023” Lee continued to represent that “he was voting against any sale and that he would not vote to sell to anyone but his offer.” (Id. ¶¶ 62-63.) While Ko does

not specifically identify when he suspected that Lee had misrepresented his intentions with the Property, he alleges that he “realized that [Lee] must have voted for and agreed to the sale to another buyer” at some point “after losing the building.” (Id. ¶ 66.) In other words, Lee seemingly continued making his alleged false promises until the date of the Property sale. Presuming that the sale of the Property occurred on or around March 31, 2023, the Court finds that the limitations period for Ko’s misrepresentations did not necessarily begin to run until on or around this date. Thus, based on the facts alleged on the face of the FAXC, Ko’s misrepresentation claims are not necessarily time barred.

Nevertheless, in light of the above analysis, the Court finds that the elements of Ko’s misrepresentation claims are insufficiently pled and only curable to the extent that they can be reframed as a false promise claim. Therefore, Cross-Defendants’ demurrer to the sixth and seventh causes of action in the FAXC is SUSTAINED without leave to amend, while the demurrer to the eighth and ninth causes of action is SUSTAINED with LEAVE TO AMEND.

B.

12th

and 13th Causes of Action: Interference with Contract and Interference with Prospective Economic Relations – OVERRULED in part [as to Lee] and SUSTAINED with LEAVE TO AMEND in part [as to YJL Corp.]

Ko fails to state both his tortious interference with contract claim[2] and his tortious interference with prospective economic relations claim[3] against Cross-Defendants. Ko’s tortious interference claims are brought derivatively on behalf of the Company. Ko’s contract interference claim alleges that Lee, acting on behalf of himself and YJL Corp., encouraged the Company’s nurse practitioners to stop working for the Company and work instead for YJL Corp. and other Roe entities. (FAXC, ¶¶ 89, 185.) Ko alleges that “at least one contracted nurse practitioner quit” and was subsequently hired by YJL Corp. or one of Lee’s other businesses. (Id. ¶ 90.) Meanwhile, Ko’s economic interference claim alleges that Lee, acting on behalf of himself and the YJL Corp., encouraged the Company’s patients to leave and find treatment with other clinics owned by Lee, including YJL Corp. and other Roe entities. (Id. ¶¶ 91, 193.)

Cross-Defendants

argue that Ko fails to plead that Cross-Defendants engaged in any independently wrongful conduct. (Mot., at p. 11.) For a tortious interference with prospective economic relations claim, “a plaintiff must plead and prove that the conduct alleged to constitute the interference was independently wrongful, i.e., unlawful for reasons other than that it interfered with a prospective economic advantage.” (Crown Imports, LLC v. Superior Ct. (2014) 223 Cal. App. 4th 1395, 1404.) Likewise, in a claim for interference with contract, although it is generally not necessary for a defendant's conduct to be wrongful apart from the interference with the contract itself, tortious interference claims involving at-will employment contracts do require the plaintiff to establish independent wrongfulness. (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 55 [independent wrongfulness is not generally an element of tortious interference with contract]; Ixchel Pharma, LLC v. Biogen, Inc. (2020) 9 Cal.5th 1130, 1137 [at-will employment contracts are an exception to the general rule].) Under California law, there is a statutory presumption that employment is at will. (Singh v. Southland Stone, U.S.A., Inc. (2010) 186 Cal.App.4th 338, 355; see Lab. Code § 2922.) Here, because Ko has not expressly alleged any facts to overcome this presumption, the Company's employment contract(s) with the poached employee(s) are presumably at-will. (FAXC, ¶ 185.) Accordingly, both tortious interference claims alleged here required a showing that Cross-Defendants engaged in conduct that is independently wrongful from the tortious interference itself.

Here, Ko

argues that Lee committed an independently wrongful act because he solicited employees and patients in breach of, at minimum, his fiduciary duties to the Company. (Opp., at p. 18.) In the FAXC, Ko expressly alleges that Lee owed duties of loyalty, care, and good faith to the Company and breached such duties by, for example, poaching the Company's employees and patients. (FAXC, ¶¶ 112-113, 118, 119.) These allegations are incorporated by reference into Ko's tortious interference claims, and thus, it can reasonably be inferred that this conduct is intended to support the elements of Ko's tortious interference claims. (Id. ¶¶ 181, 189.) The Court agrees with Ko that Lee's alleged breaches of his fiduciary duties to the Company sufficiently show that Lee engaged in unlawful conduct independent from the mere disruption of the Company's employee contract(s) and patient relationships. (See e.g. Angelica Textile Services, Inc. v. Park (2013) 220 Cal.App.4th 495, 508 [a breach of the duty of loyalty is a suitable basis on which to base claim of interference

with business relations].) By contrast, YJL Corp. does not owe comparable fiduciary duties to the Company, and therefore, Ko has not made a showing of independently wrongful conduct on the part of YJL Corp. (unlike Lee).

Finally,

while Cross-Defendants argue that Ko has not alleged a probability of future economic benefit to the Company from its patient relationships, the Court disagrees. (Mot., at p. 12.) Ko alleges that the Company is paid under the PACE Agreement for each patient and Cross-Defendants knew that the Company would lose payments under the PACE Agreement due to the disruption of the Company's patient relationships. (FAXC, ¶¶ 191, 194.) Ko alleges sufficient factual details to infer that the Company had a legitimate expectation of future payments based on the Company's then-existing patient relationships. (Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 527 [suggesting that a plaintiff is only required to identify a then-existing relationship with patients and the defendant's awareness that his actions would frustrate the legitimate expectations of the plaintiff].) Cross-Defendant's speculation that the Company's patients valued their patient-physician relationship with Lee over the Company's PACE program itself creates a factual question that is not properly resolved at the pleading stage.

Therefore,

Cross-Defendants' demurrer to the twelfth and thirteenth causes of action is OVERRULED with respect to the claims against Lee and SUSTAINED with LEAVE TO AMEND with respect to the claims against YJL Corp.

II. REQUEST FOR JUDICIAL NOTICE

Cross-Defendants

requests judicial notice the Grant Deed for the Property between CBL and Crystal Breach, recorded in the Los Angeles County Recorder's Office on 3/31/2023. The Court takes judicial notice of the Grant Deed pursuant to Evidence Code section 452, subd. (c).

Cross-Defendants Dr. Young-Jik Lee and YJ

Lee, M.D. Corp. to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 9/22/26 at 4:20.

[1] For brevity, this chronology summarizes only the allegations in the FAXC, as it is the pleading challenged in this demurrer.

[2]
“The tort of intentional interference with contractual relations requires: ‘(1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.’ ...” (Davis v. Nadrich (2009) 174 Cal.App.4th 1, 10.)

[3] The elements of intentional interference with prospective economic advantage are: “(1) an economic relationship between the plaintiff and a third party with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) a wrongful act, apart from the interference itself, by the defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the acts of the defendant.” (Salma v. Capon (2008) 161 Cal. App. 4th 1275, 1290.)